

Rajendra Singh Yadav v. State of U.P.

Allahabad High Court · Division Bench · 14 December 2015 · Writ-C No. 66159 of 2015 · Writ-C No. 66159 of 2015 · **Writ disposed; petitioner relegated to Clause 6.5(b) remedy.**

HEADNOTE

A consumer disputing the accuracy of electricity bills must use Clause 6.5(b) of the U.P. Electricity Supply Code, 2005—pay under protest or complain to the competent authority, to be decided within seven days. The writ court disposed of the petition with liberty to invoke Clause 6.5, directing an expeditious decision if that remedy is invoked.

FACTUAL SUMMARY

Rajendra Singh Yadav challenged electricity bills raised by Dakshinanchal Vidyut Vitran Nigam Limited, Farrukhabad, asserting that the amounts shown had already been paid and he was not in arrears. Counsel for the Power Company and the State submitted that a statutory remedy was available under the U.P. Electricity Supply Code, 2005. The Division Bench recorded that contention and disposed of the writ without examining the bills or the alleged payments on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

bill-accuracy-objection

HOLDING

Where a consumer disputes the accuracy of electricity bills, Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 supplies the remedy—payment under protest or a complaint to the competent authority, to be decided within seven days—and the writ court will dispose of the petition with liberty to invoke Clause 6.5, directing that an appropriate decision be taken expeditiously. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS IN ARREARS OR THE DISPUTED BILLS HAD ALREADY BEEN PAID.

¶ 1